

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1526
(Representatives Nelson, Berg, Brown, Schreiber-Beck, Weisz)
(Senators Klein, Thomas)

AN ACT to amend and reenact subsection 11 of section 4.1-41-01 and section 4.1-41-05 of the North Dakota Century Code, relating to pet food registration.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Subsection 11 of section 4.1-41-01 of the North Dakota Century Code is amended and reenacted as follows:

11. "Labeling" means the written, printed, or graphic information accompanying the distribution of commercial feed or customer-formula feed, including promotional materials distributed to market the feed and statements and promotions through radio, television, or internet interface, or on an organization's website.

SECTION 2. AMENDMENT. Section 4.1-41-05 of the North Dakota Century Code is amended and reenacted as follows:

4.1-41-05. Pet food - Specialty pet food - Registration - Exemption - Penalty.

1. Before being distributed in this state, each pet food product and each specialty pet food product must be registered with the commissioner. This requirement does not apply to a distributor, provided the pet food or specialty pet food is registered by another person.
2. To register and renew pet food and specialty pet food, a person shall submit:
 - a. An application form at the time and in the manner required by the commissioner; and
 - b. A fee in the amount of one hundred ~~twenty~~ dollars per product manufactured out-of-state;
and
 - c. A fee in the amount of fifty dollars per product manufactured in the state.
3. ~~To renew a registration required by this section, a person shall submit:~~
 - a. ~~An application form at the time and in the manner required by the commissioner; and~~
 - b. ~~A fee in the amount of one hundred dollars per product.~~
4. A registration issued under this section is valid during the period beginning on January first of an even-numbered year and ending on December thirty-first of the ensuing odd-numbered year.
- ~~5.4.~~ If a person fails to renew a registration within thirty-one days of its expiration, that person must apply for an initial registration.
- ~~6.5.~~ Upon approving an application for an initial registration or a renewed registration, the commissioner shall furnish a certificate of registration to the applicant. A certificate of registration is not transferable.
- ~~7.6.~~ Any person violating this section is subject to a penalty of twenty-five dollars for each product that must be registered.

~~8.7.~~ A person is exempt from this section if the person:

- a. Is a resident of this state;
- b. Produces pet food in a noncommercial kitchen;
- ~~b.c.~~ Sells the pet food directly to the end consumer at a community event or farmer's market;
and
- ~~e.d.~~ Does not use meat, poultry, fish, or their byproducts as an ingredient in the product.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1526.

House Vote: Yeas 90 Nays 0 Absent 4

Senate Vote: Yeas 47 Nays 0 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State